

in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent Defendants seek affirmative relief for any of Plaintiff's actions, they are required to file a motion seeking such relief.

Conclusion

Plaintiff's motion to disqualify is **denied**.

11. 9:00 AM CASE NUMBER: MSC19-01240

CASE NAME: SONNENSHEIN VS PACIFIC UNION

*HEARING ON MOTION IN RE: FOR PARTIAL JUDGMENT ON THE PLEADINGS AS TO DEFENDANTS' ANSWER

FILED BY: SONNENSHEIN, STACEY

TENTATIVE RULING:

Before the Court is a motion by Plaintiffs for partial judgment on the pleadings. For the reasons set forth, the motion is **denied**.

Background

In July 2015, plaintiffs Stacey Sonnenshein and Adam Bailey purchased a residential real property located at 6040 Feliz Avenue in Richmond. In their operative second amended complaint ("2AC"), Plaintiffs have sued defendants Pacific Union International, Inc. and Dan Joy, the real estate brokerage and sales agent, respectively, who represented both the Plaintiffs as buyers and the sellers in the transaction. They allege the defendants misrepresented that the "in-law" unit on the property was a "legal" unit. The 2AC alleges three causes of action for actual/constructive fraud (1st C/A), negligence (2nd C/A), and breach of fiduciary duty (3rd C/A).

Plaintiffs move for partial judgment on the pleadings as to Defendants' tenth affirmative defense in their amended answer filed on October 27, 2025.

Plaintiffs seek a partial judgment on the pleadings to the effect that the tenth affirmative defense does not constitute a defense to the Plaintiffs' second cause of action for negligence. (Not. Mot. p. 2, ll. 3-12.)

Legal Standards Applicable to Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 addresses motions for judgment on the pleadings. "A plaintiff is entitled to judgment on the pleadings if its complaint states a cause of action against the defendant and the defendant's answer does

not state facts sufficient to constitute a defense." (*State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal. App. 5th 422, 445.) (See also Code Civ. Proc. § 438(c)(1)(A).) The motion may be made "as to either of the following: [¶] (A) The entire complaint or cross-complaint or as to any of the causes of action stated therein. [¶] [or] (B) The entire answer or one or more of the affirmative defenses set forth in the answer." (Code Civ. Proc. §§ 438(c)(2)(A) and (B).)

Like a demurrer, "The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) (*See also Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"]; *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [" 'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"]].)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) As in the case of a demurrer, the Court accepts all factual allegations of the complaint (or answer) and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-16.) "[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution. [Citation omitted.]" (*Schabarum v. California Legislature* (1998) 60 Cal. App. 4th 1205, 1216.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action, or the challenged affirmative defense. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167 [demurrer], overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A., supra*, 12 Cal.5th at 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683 [demurrer].) A motion for judgment on the pleadings cannot be granted as to a portion of a cause of

action or a portion of an affirmative defense for the same reason as a demurrer. (See *Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452 [stating a motion for judgment on the pleadings is the "functional equivalent" of a demurrer, and that "[o]rdinarily, a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled. [Citation omitted.]"].)

Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.) (See also *Gami v. Mullikin Medical Center* (1993) 18 Cal. App. 4th 870, 876-877.)

Meet and Confer Requirement

Plaintiffs' counsel filed a declaration describing the meet and confer process leading to the motion. The parties met and conferred exclusively by exchanging letters and emails. (Steinfeld Meet & Confer Decl. ¶¶ 5-7.) Parties are required to meet and confer "in person, by telephone, or by video conference" under Code of Civil Procedure § 439(a). Nevertheless, Plaintiffs' counsel's initial communication invited Defendants' counsel to provide convenient times for a discussion, to which Defendants' counsel responded indicating they would not withdraw their tenth affirmative defense. (Steinfeld Meet and Confer Decl. Exhs. 1 and 2.) The Court finds that the meet and confer requirement has not been adequately satisfied, and the Court reminds the parties that the obligation to meet and confer by telephone, videoconference, or in person is imposed on both sides, not just the moving parties. Nevertheless, the Court will issue a ruling on the merits of the motion given the Court's intended denial of the motion for the reasons stated herein.

Analysis

Plaintiffs' motion for judgment on the pleadings is based on a number of pleadings including: (1) the Steinfeld Declaration regarding a "Stipulation of Counsel re Admissibility at Trial of Specified Documents" dated September 29, 2025 ("Document Stipulation"), accompanied by nine documents, such as a residential purchase agreement and other documents related to the sale, emails and a Buyer Representation Agreement – Exclusive (Exhs. 1-10); (2) the

Bailey Declaration describing Bailey's version of the events involved in the purchase as well as subsequent events related to their alleged claims for damages with additional documents attached as exhibits; (3) a "Separate Statement of Undisputed Material Facts" in support of the motion, listing a series of facts with citations to supporting evidence; (4) another Steinfeld Declaration attaching copies of the versions of Civil Code §§ 1088 and 1086 he attests were in effect in 2015 when the sale transaction occurred; (5) a request for judicial notice ("Plaintiffs' RJN") of the significance of certain statutes (Bus. & Prof. Code ¶ 10015.1, Civ. Code § 1088(b), and Civ. Code § 1086(b)), as well as a request for judicial notice of the legislative history of Civil Code § 1088 added in 1982 and amended in 1993, copies of which are included as attachments Items 1 and 2 to the RJN. (Not. Mot. and Mot. p. 3, ll. 1-8.)

As explained below, the relief sought by Plaintiffs in the motion does not fit the criteria for relief under Code of Civil Procedure § 438. Further, the Separate Statement highlights that the motion improperly raises factual and evidentiary matters outside the 2AC and the amended answer and matters properly subject to judicial notice. Plaintiffs' reliance on facts and evidence outside the operative pleadings and Plaintiffs' RJN preclude the Court from granting the motion.

A. The Motion Cannot Be Granted Because the Relief Sought Would Not Result in Judgment for Plaintiffs on the Second Cause of Action or Judgment for Plaintiffs on the Tenth Affirmative Defense

Defendants' Amended Answer filed on October 27, 2025 includes the following as Defendants' Tenth Affirmative Defense: "As an affirmative defense to each and every cause of action, Defendants allege that their duties, if any, were limited by the terms of the various statutes, including but not limited to, Civil Code sections 1102 *et seq.* and 2079 *et seq.*, including 2079.3, which provides that Defendants had no duty to inspect areas of the subject property that are reasonably and normally inaccessible to a visual inspection, areas off the site of the property, or public records and permits concerning the title or use of the property." (Emphasis added.) The face of Defendants' amended answer alleges fourteen affirmative defenses, each of which is alleged and stated to be applicable to "each and every cause of action."

The motion does not seek judgment on the pleadings for Plaintiffs on their second cause of action for negligence in its entirety on the ground that they are entitled to judgment as a matter of law on that cause of action. Plaintiffs do not seek judgment on the pleadings in their favor on the ground that the tenth affirmative defense does not state facts sufficient to constitute a defense to any of the three causes of action alleged in the 2AC. Plaintiffs are explicit both in their notice of motion and motion and their supporting memorandum that they seek a determination only that the tenth affirmative defense is not a defense to their negligence cause of action. (Not. Mot. p. 2, ll. 3-12; MPA ISO Mot. p. 5, ll. 16-17 ["The Tenth Affirmative Defense in the Amended Answer is pled as to 'each and every cause of action,' but here is considered only in relation to the cause of action for negligence."].)

Granting the relief requested in the motion would not entitle Plaintiffs to judgment on either a cause of action or an affirmative defense. The tenth affirmative defense would continue to stand as a defense to other causes of action alleged in the 2AC, and Plaintiffs have not demonstrated they are entitled to judgment on the negligence cause of action as a matter of law based on the pleadings alone, including in light of the 13 other affirmative defenses raised and Defendants' general denial of the allegations of the 2AC in their amended answer, whether or not matters properly subject to judicial notice are considered. Because the relief Plaintiffs seek on the motion would neither fully dispose of a cause of action nor eliminate an entire affirmative defense to the 2AC, the motion is **denied**. (Code Civ. Proc. §§ 438(c)(2)(A) and (B); *Daniels, supra*, 246 Cal.App.4th at 1167; *PH II, supra*, 33 Cal.App.4th at 1682-1683; *Fire Ins. Exchange, supra*, 116 Cal.App.4th at 452.)

B. The Motion Is Improper As It Is Based on Evidentiary Matters Outside the Scope of the Pleadings and Matters Within the Proper Scope of Judicial Notice

The only documents Plaintiffs have requested judicial notice of in their RJN are the meaning of three statutes as cited above and the legislative history of Civil Code § 1088 when enacted and when amended in 1993. For their part, Defendants have requested judicial notice of a first amended petition for writ of mandate filed by Plaintiffs as petitioners, initiating Case No. N24-0591, and an

April 3, 2025 Order in that case. Plaintiffs contend in their reply that they did not have an adequate opportunity to address the documents for which Defendants request judicial notice. Whether or not the Court granted either side's request for judicial notice, the moving papers demonstrate that Plaintiffs are asking the Court to consider factual and evidentiary matters outside the scope of the 2AC, Defendants' amended answer, and the matters subject to their filed requests for judicial notice, which is improper on a motion for judgment on the pleadings.

The Steinfeld "Stipulation" Declaration attaches as Exhibit 1 the Document Stipulation between counsel which states in relevant part that the documents listed in the Stipulation "are genuine and shall be admissible at the trial of this matter." (Steinfeld "Stipulation" Decl. Exh. 1 [Doc. Stip. p. 2, ll. 1-4].) The only facts agreed to in the Document Stipulation are that the listed documents are authentic and relevant, such that they can be admitted into evidence at trial. The motion is based in part on the truth and interpretation of transactional documents between the parties and the parties' email communications (*see* Steinfeld Stipulation Declaration Exhs. 7, 8, and 10), as well as declaration testimony by Plaintiff Bailey and exhibits attached to his declaration.

Plaintiffs' moving papers, including the facts and evidence citations in the Separate Statement, demonstrate that Plaintiffs' motion is dependent upon extrinsic evidence outside the pleadings or matters judicially noticeable, including a factual declaration by one of the Plaintiffs, and the truth and interpretation of statements in emails and other materials which are reasonably disputable. (*See* Separate Statement, Facts Nos. 5, 6, 9, 10-16, 18, 19, citing Bailey Decl. ¶¶ 4, 8, 9, 10, 12, 13, 14, 15, 17-22.) Neither the Bailey Declaration nor the Separate Statement are within the scope of the "pleadings" that are supposed to be considered in determining a motion for judgment on the pleadings, nor does Plaintiffs' reply to the opposition cite any authority that would allow the Court to do consider those matters in ruling on this motion.

Judicial notice of pleadings and documents is limited in scope. Judicial notice of a pleading is generally limited to the fact the pleading was filed, but not the truth or interpretation of the content of the pleading where reasonably disputable. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9;

Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 113-115; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

The Court in *Fremont Indemnity Co.*, *supra*, 148 Cal.App.4th 97 addressed at length the proper scope of judicial notice. (*Id.* at 113-115.) Judicial notice of a document does not extend to the "truth or interpretation" of a document to the extent reasonably disputable. (*Id.* ["Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. ([Citation omitted.])"].) The Court explained, "For a court to take judicial notice of the meaning of a document submitted by a demurring party based on the document alone, without allowing the parties an opportunity to present extrinsic evidence of the meaning of the document, would be improper. A court ruling on a demurrer therefore cannot take judicial notice of the proper interpretation of a document submitted in support of the demurrer. [Citations omitted.] In short, a court cannot by means of judicial notice convert a demurrer into an incomplete evidentiary hearing in which the demurring party can present documentary evidence and the opposing party is bound by what that evidence appears to show." (*Id.* at 114-115.) This analysis applies equally to documents presented in support a motion for judgment on the pleadings based on abundant authority, including that cited above, that the standards for ruling on a motion for judgment on the pleadings are essentially those applied to ruling on a demurrer.

Defendants argue persuasively that Plaintiffs' contentions regarding the application of Civil Code § 1088 in this case raise factual issues that cannot be resolved on a motion for judgment in the pleadings. Civil Code § 1088 in effect in 2015 provides that an agent "shall be responsible for the truth of all representations and statements made by the agent . . . of which that agent . . . had knowledge or reasonably should have had knowledge to anyone injured by their falseness or inaccuracy." (Civ. Code § 1088(b) in the current statute, the text of which is unchanged.) What Defendants knew or should have known about the in-law unit, whether Plaintiffs obtained additional information or Defendants provided additional information beyond the content of the listing

and emails regarding the in-law unit presently before the Court prior to the sale closing, whether the representations were false or inaccurate, and whether Plaintiffs were "injured by their falseness or inaccuracy" are all matters that raise factual issues requiring evidence that cannot be resolved as a matter of law on a motion for judgment on the pleadings, as the record on this motion well illustrates. (*See also* Bailey Decl. ¶¶ 4, 8, 9, 10, 12, 13, 14, 15, 17-22.)

On this additional ground, the motion is **denied**.

12. 9:00 AM CASE NUMBER: N26-0169

CASE NAME: CLAIM OF: NICOLE ORTIZ

*HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged with the Court.

Discovery Law & Motion

13. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT GOVIND K. SHAHI'S SPECIAL INTERROGATORIES, SET ONE TO PLAINTIFF THALBIR OLI

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING

Discovery Referee is appointed.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See CCP §639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to